

TENTATIVE RULINGS for LAW and MOTION

March 5, 2026

Pursuant to Yolo County Local Rules, the following tentative rulings will become the order of the court unless, by 4:00 p.m. on the court day before the hearing, a party requests a hearing and notifies other counsel of the hearing. To request a hearing, you must contact the clerk of the department where the hearing is to be held. Copies of the tentative rulings will be posted on Yolo Court's Website, at www.yolo.courts.ca.gov. If you are scheduled to appear and there is no tentative ruling in your case, you should appear as scheduled.

Telephone number for the clerk in Department Eleven	(530) 406-6843
Telephone number for the clerk in Department Fourteen	(530) 406-6800

TENTATIVE RULING

Case: **Burnam-Bruce v. AWTs, LLC**
Case No. CV2025-2677

Hearing Date: **March 5, 2026** **Department Eleven** **9:00 a.m.**

Defendant AWTs, LLC's petition to enforce class action waiver and compel arbitration and dismissal is **DENIED WITHOUT PREJUDICE**. (9 U.S.C. § 2; Code Civ. Proc, §§ 1281, et seq., 1290, et seq.) The Court finds that defendant fails to show a valid agreement to arbitrate exists. (Code Civ. Proc., § 1281 et seq.; *McAllister Bros., Inc. v. A & S Trans. Corp.* (1980) 621 F.2d 519, 524 [in order to determine whether a valid arbitration agreement exists under the FAA, courts must turn to state contract law]; *Harris v. TAP Worldwide, LLC* (2016) 248 Cal.App.4th 373, 381 ["The party seeking arbitration bears the initial burden of demonstrating the existence of an arbitration agreement."].) Defendant fails to establish by a preponderance of the evidence that plaintiff's electronic signature on the purported agreement to arbitrate was authentic. (*Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1057 – 1058, 1060, 1061 [once a plaintiff challenge the validity of that signature in plaintiff's opposition, a defendant is then required to establish by a preponderance of the evidence that the signature was authentic]; *Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 757 [an individual's inability to recall signing electronically may reasonably be regarded as evidence that the person did not do so]; *Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 846; Burnham-Bruce Decl., ¶¶ 3 – 10; Edmunds Decl., generally and ¶¶ 8, 10, Exhibits A, B.) The purported agreement to arbitrate, a document entitled "Mutual Agreement to Arbitrate Employment-Related Disputes" is not identified as a document provided to plaintiff as part of her onboarding process. (Edmunds Decl., ¶¶ 4 – 8, Exhibits A, B.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Burnam-Bruce v. AWTS, LLC**
Case No. CV2025-3059

Hearing Date: **March 5, 2026** **Department Eleven** **9:00 a.m.**

Defendant AWTS, LLC's petition to compel arbitration and request stay of proceedings is **DENIED WITHOUT PREJUDICE**. (9 U.S.C. § 1, et seq., 1281, et seq., 1290, et seq.) The Court finds that defendant fails to lay the foundation to show a valid agreement to arbitrate exists. (Code Civ. Proc., § 1281 et seq.; *McAllister Bros., Inc. v. A & S Trans. Corp.* (1980) 621 F.2d 519, 524 [in order to determine whether a valid arbitration agreement exists under the FAA, courts must turn to state contract law]; *Harris v. TAP Worldwide, LLC* (2016) 248 Cal.App.4th 373, 381 ["The party seeking arbitration bears the initial burden of demonstrating the existence of an arbitration agreement."].) Defendant fails to establish by a preponderance of the evidence that plaintiff's electronic signature on the purported agreement to arbitrate was authentic. (*Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1057 – 1058, 1060, 1061 [once a plaintiff challenge the validity of that signature in plaintiff's opposition, a defendant is then required to establish by a preponderance of the evidence that the signature was authentic]; *Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 757 [an individual's inability to recall signing electronically may reasonably be regarded as evidence that the person did not do so]; *Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 846; Burnham-Bruce Decl., ¶¶ 3 – 10; Edmunds Decl., generally and ¶¶ 8, 10, Exhibits A, B [attached as Exhibit 1 to Patel Decl.].) The purported agreement to arbitrate, a document entitled "Mutual Agreement to Arbitrate Employment-Related Disputes" is not identified as a document provided to plaintiff as part of her onboarding process. (Edmunds Decl., ¶¶ 4 – 8, Exhibits A, B [attached as Exhibit 1 to Patel Decl.].)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

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TENTATIVE RULING

Case: **Ceja v. Jack Mariani Company**
 Case No. CV2023-2297

Hearing Date: **March 5, 2026** **Department Eleven** **9:00 a.m.**

Parties are **DIRECTED TO APPEAR.**

TENTATIVE RULING

Case: **Matter of Hemly**
 Case No. PR2026-0020

Hearing Date: **March 5, 2026** **Department Eleven** **9:00 a.m.**

The petitioner, Sarah Hemly, and the minors, James Buckman Hemly and Robert Wallace Hemly, are **DIRECTED TO APPEAR** (in person or by Zoom). (Cal. Rules of Court, rule 7.952; YCR 2.4.) If the parties fail to appear at the hearing and the Court has not excused their personal appearance, the petition will be denied without prejudice. No request for a hearing is required.

TENTATIVE RULING

Case: **Kalmykov v. Shell Point Mortgage Servicing et al.**
Case No. CV2023-0547

Hearing Date: **March 5, 2026** **Department Eleven** **9:00 a.m.**

Defendant The Mortgage Law Firm, PLC's motion for summary judgment is **DENIED**. (Code Civ. Proc., § 437c, subd. (p)(2).) The Court finds that defendant has not shown that its [second] motion for summary judgment is based on newly discovered facts or circumstances or a change of law; thus, is precluded by statute. (Code Civ. Proc., § 437c, subd. (f)(2); *Bagley v. TRW, Inc.* (1999) 73 Cal.App.4th 1092, 1096 - 1097.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

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TENTATIVE RULING

Case: Mitchell v. Langston
Case No. CV2025-3055

Hearing Date: March 5, 2026 **Department Eleven** **9:00 a.m.**

Motion to disregard the November 24, 2025, Ninke declaration:

Defendant Theresa Langston (“defendant”) filed an untimely opposition. (Code Civ. Proc., § 1005, subd. (b) [all papers opposing a motion must be filed with the court and a copy served on each party at least nine court days before the hearing].) Despite being untimely, the Court will consider defendant’s opposition. (Cal. Rules of Court, rule 3.1300(d); *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262 [stating that “a trial court has broad discretion to accept or reject late-filed papers”].)

Plaintiff Frederick Mitchell’s (“plaintiff”) motion for a court order to disregard the false “declaration of demurring or moving party regarding meet and confer” filed on November 24, 2025, under penalty of perjury as to defendant and to enter default and default judgment nunc pro tunc to November 25, 2025, is **DENIED**. The Court finds that plaintiff fails to provide sufficient legal authority to support the relief requested in this motion. (Cal. Rules of Court, rule 3.1113(b); see *Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal.App.4th 927, 934, citing *Chavez v. Netflix, Inc.* (2008) 162 Cal.App.4th 43, 52 [where a motion is supported by a deficient memorandum, the trial court is justified in denying the motion on procedural grounds]; see also *Hood v. Gonzales* (2019) 43 Cal.App.5th 57, 73–74, citing *Sprague v. Equifax, Inc.* (1985) 166 Cal.App.3d 1012, 1050 [every brief should contain a legal argument with citation of authorities on the points made and if none is furnished on a particular point, the court may treat it as waived and pass it without consideration].)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Demurrer:

Plaintiff’s objection to defendant’s demurrer on jurisdictional grounds and standing is **OVERRULED**.

Defendant’s demurrer is **SUSTAINED WITHOUT LEAVE TO AMEND**. (Code Civ. Proc., § 430.10, subd. (e).) The Court finds that all causes of action asserted in plaintiff’s complaint are barred by the litigation privilege. (Civ. Code, § 47, subd. (b); *Rusheen v. Cohen* (2006) 37 Cal.4th 1048, 1052; *Dickinson v. Cosby* (2017) 17 Cal.App.5th 655, 681-82; *Tom Jones Enterprises, Ltd. v. County of Los Angeles* (2013) 212 Cal.App.4th 1283, 1294; Complaint, ¶¶ 8-53, 60-65, 67-90, 125-142, 156-168, 198-222.) The Court further finds that plaintiff has not shown how the defects of these causes of action can be cured by amendment. (See *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Cooper v. Leslie Salt Co.* (1969) 70 Cal.2d 627, 636 [“[t]he burden of proving such reasonable possibility is squarely on the plaintiff”]; *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349; *Schifando v. City of Los Angeles* (2003) 31 Cal.4th 1074, 1081 [“plaintiff has the burden of proving that an amendment would cure the defect”].)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Case management conference:

Parties are **DIRECTED TO APPEAR.**

TENTATIVE RULING

Case: **Rojas v. Yolo Eats, Inc.**
 Case No. CV2024-1256

Hearing Date: **March 5, 2026** **Department Fourteen** **9:00 a.m.**

Parties are **DIRECTED TO APPEAR** for a hearing on plaintiff's unopposed motion for preliminary approval of class action settlement. (Cal. Rules of Court, rule 3.769(c), (d).) Prior to the hearing the parties are **DIRECTED** to meet and confer and be prepared to discuss selecting a date for a final approval hearing. (Cal. Rules of Court, rule 3.769(e).)

TENTATIVE RULING

Case: State Farm General Insurance Company v. Quenga
Case No. CV2025-2379

Hearing Date: March 5, 2026 **Department Eleven** **9:00 a.m.**

Demurrer:

The Court rules on defendant Barbara Quenga's demurrer to plaintiff's complaint as follows:

- Defendant's demurrer to all causes of action in the first amended complaint on the ground of uncertainty is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (f).) The Court finds that the allegations of the complaint are sufficiently clear apprise defendants of the issues she is to meet. (See *Gressley v. Williams* (1961) 193 Cal.App.2d 636, 643; see also *A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695 citing *Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616 ["A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures."]; FAC, ¶¶ 2 and 6 - 9.)
- Defendant's demurrer to all causes of action in the first amended complaint on the ground that they fail to state facts to constitute any cause of action is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) The Court finds that the allegations of the first amended complaint sufficiently allege defendant's ownership, possession, control, duty, and actual or constructive notice. (See *Krug v. Meeham* (1952) 109 Cal.App.2d 274, 277; FAC, ¶¶ 2, 6 - 9, 11, 12, 15, 21, 22 and 34.)
- Defendant's demurrer to the first amended complaint on the ground that plaintiff fails to allege subrogation standing is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e); see *Oakland Municipal Improv. League v. City of Oakland* (1972) 23 Cal.App.3d 165, 170.) The Court finds that there are sufficient allegations to support plaintiff's subrogation standing. (See *Fireman's Fund Ins. Co. v. Maryland Casualty Co.* (1998) 65 Cal.App.4th 1279, 1291-1293; *Pacific Gas & Electric Co. v. Superior Court* (2006) 144 Cal.App.4th 19, 23; FAC, ¶¶ 2, 6 - 9, 13, 16, 17, 19, 23, 24, 27, 28, 31 and 35 - 38.)
- Defendant's demurrer to the first cause of action for negligence on the ground that it fails to state facts to constitute a cause of action is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) The Court finds that plaintiff has sufficiently alleged facts to support a cause of action for negligence. (See *Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917-918; see also *Guilliams v. Hollywood Hospital* (1941) 18 Cal.2d 97, 101 ["it is established that a cause of action may be stated in which negligence is alleged in general terms, without detailing the specific manner in which the injury occurred."]; FAC, ¶¶ 2, 6 - 9, 11 - 13.)

- Defendant’s demurrer to the second cause of action for trespass on the ground that it fails to state facts to constitute a cause of action is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) The Court finds that defendant fails to provide any published and/or relevant legal authority in support of this ground. (Cal. Rules of Court, rule 3.1113(b); *Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal.App.4th 927, 934 [where a motion is supported by a deficient memorandum, the trial court is justified in denying the motion on procedural grounds]; *Hood v. Gonzales* (2019) 43 Cal.App.5th 57, 73 – 74 [every brief should contain a legal argument with citation of authorities on the points made and if none is furnished on a particular point, the court may treat it as waived and pass it without consideration].)
- Defendant’s demurrer to the third cause of action for private nuisance on the ground that it fails to state facts to constitute a cause of action is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) The Court finds that defendant fails to provide any published and/or relevant legal authority in support of this ground. (Cal. Rules of Court, rule 3.1113(b); *Quantum Cooking Concepts, Inc., supra*, 197 Cal.App.4th at p. 934; *Hood, supra*, 43 Cal.App.5th at pp. 73 – 74.) The Court further finds that plaintiff has sufficiently alleged facts to support a cause of action for private nuisance. (See *Lussier v. San Lorenzo Valley Water Dist.* (1988) 206 Cal.App.3d 92, 101; FAC, ¶¶ 2, 6 – 9 and 21 – 26.)
- Defendant’s demurrer to the fourth cause of action for premises liability on the ground that it fails to state facts to constitute a cause of action is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) The Court finds that defendant fails to provide any published and/or relevant legal authority in support of this ground. (Cal. Rules of Court, rule 3.1113(b); *Quantum Cooking Concepts, Inc., supra*, 197 Cal.App.4th at p. 934; *Hood, supra*, 43 Cal.App.5th at pp. 73 – 74.) The Court further finds that plaintiff has sufficiently alleged facts sufficient to state a cause of action for premises liability (See *Kesner v. Superior Court* (2016) 1 Cal.5th 1132, 1159 [“In determining whether a premises owner owes a duty to persons on its property, we apply the *Rowland* factors. Indeed, *Rowland* itself involved premises liability.”]; *Brooks v. Eugene Burger Management Corp.* (1989) 215 Cal.App.3d 1611, 1619 [“Premises liability is a form of negligence based on the holding in *Rowland v. Christian, supra*, 69 Cal.2d 108, and is described as follows: The owner of premises is under a duty to exercise ordinary care in the management of such premises in order to avoid exposing persons to an unreasonable risk of harm. A failure to fulfill this duty is negligence”]; FAC, ¶¶ 2, 6 – 9 and 33 – 36.)

The notice of demurrer does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Motion to strike:

Defendant Barbara Quenga's request for judicial notice is **GRANTED**. (Evid. Code, §§ 452, subd. (d), 453.)

Defendant's motion to strike portions of plaintiff's complaint is **DENIED**. (Code Civ. Proc., § 435, 436.) The Court finds that that defendant fails to show how the allegedly conclusory allegations within paragraphs 11, 12, 15, 21, 26 and 29 of the first amended complaint are extraneous to the factual bases for plaintiff State Farm General Insurance Company's causes of action. (*Young v. Midland Funding LLC* (2023) 91 Cal.App.5th 63, 96.) Further, defendant's arguments raised regarding paragraphs 11, 12, 15, 21, 26, 29, 33 and 34 of the first amended complaint are improper as they were addressed in defendant's demurrer. (*CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1146 ["A motion to strike under section 435 et seq. is traditionally used to reach pleading defects that are not subject to demurrer."].) The Court also finds that the allegations defendant seeks to strike within paragraphs 11, 12, 15, 21, 26, 29, 33 and 34 of the first amended complaint are so broad as to include relevant matters. (*Young v. Midland Funding LLC* (2023) 91 Cal.App.5th 63, 96.) Finally, the Court finds that the allegations defendant seeks to strike within paragraphs 13, 19, 31 and 38 of the first amended complaint are not improperly inserted in the pleading; they sufficiently alleged a claim for prejudgment interest. (*North Oakland Medical Clinic v. Rogers* (1998) 65 Cal.App.4th 824, 829 ["A general prayer in the complaint is adequate to support an award of prejudgment interest."].)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Case management conference:

Parties are **DIRECTED TO APPEAR**.